

Mohd Ismail v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 February 2023 · Writ - C No. 3466 of 2023 · **Disposed; fresh order to follow Supply Code procedure**

HEADNOTE

The electricity department stated that a recovery certificate for alleged theft dues had been withdrawn and that a fresh order would be passed after hearing the consumer. The writ was disposed with liberty to pass that order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. The dues were not decided.

FACTUAL SUMMARY

Mohd Ismail petitioned the Allahabad High Court against a recovery certificate dated 28 January 2021 issued by respondent no. 2 for electricity dues alleged to arise from theft, and for a direction to respondent no. 4 to decide his representation of 3 September 2021. He said the dues had been deposited while recovery continued. On 7 February 2023 departmental counsel produced a communication of 23 January 2023 from respondent no. 4 and stated that the certificate stood withdrawn and that a fresh order would be made after hearing him.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Fresh order after withdrawal of a theft-dues recovery certificate

HOLDING

On the electricity department's statement that recovery certificate dated 28.1.2021 had been withdrawn and that a fresh order would be passed after hearing the petitioner, the writ was disposed with liberty to the department to pass that fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 3

FLAG The order invokes the Electricity Supply Code, 2005 but cites no clause number; none has been supplied.

PRINCIPLE TAGS

UP-2005::procedure-prescribed After the department withdrew the theft-dues recovery certificate, any fresh order was left to the procedure prescribed under the Electricity Supply Code, 2005, following a hearing. The court did not assess the dues or decide the representation. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED THEFT DUES WERE RECOVERABLE, AND IN WHAT SUM

Left to the fresh order the department said it would pass after hearing. ¶ 3

NOT DECIDED — THE REPRESENTATION DATED 3.9.2021

The prayer for a mandamus to decide it was not granted; the petition was disposed on the department's statement. ¶ 1-3

NOT DECIDED — WHETHER THE AMOUNT SAID TO HAVE BEEN DEPOSITED SATISFIED THE DEMAND

Stated by counsel on 1.2.2023 and not adjudicated. ¶ 3

